

Legal Report: Ravi Kumar v. BESCO

1. Facts

- Complainant: Ravi Kumar, resident of Bengaluru
- Incident: Continuous power outage lasting 7 days
- Written complaint lodged: 3 March 2026 (No. 456789)
- Status: No restoration or meaningful response despite assurances
- Impact: Loss of income because complainant works from home

2. Applicable Law

- Electricity (Consumer) Rules 2020
- Karnataka Electricity Supply Code (KESC) – §§ 5.3, 7.2, 8.1
- Consumer Protection Act 2019 – §§ 2(11), 49, 69

3. Merits

A. Breach of Service-Level Commitment – STRONG

- KESC § 5.3 incorporates BESCO Citizen Charter
- Charter guarantees local outage restoration within 24 hours
- 7-day failure constitutes contractual breach and deficiency under CPA 2019 § 2(11)

B. Compensation for Economic Loss – WEAK

- CPA 2019 § 49 allows compensation for loss caused by deficient service
- Courts treat indirect wage loss as discretionary; full reimbursement requires strict proof (pay slips, client contracts, tax returns)
- Expect modest ex-gratia award unless documentary quantification supplied

C. Non-Redressal Within Statutory Period – VALID

- No resolution within 30 days of complaint is deemed deficiency per CPA 2019 § 49(2)(b)
- Complaint is within 2-year limitation period (§ 69)

D. Failure to Communicate – VALID

- KESC §§ 7.2 & 8.1 oblige discom to update affected consumers every 4 hours during unplanned outages exceeding 4 hours
- BESCO admits 6-hour SMS cycle, breaching the norm

E. Constitutional Remedy – NOT TENABLE

- Temporary electricity disruption does not infringe Article 21 absent malice or total deprivation; remedy lies under consumer/electricity statutes

4. Relief Sought

- a. Immediate restoration of electricity supply
- b. Compensation for 7-day outage (quantified amount to be pleaded)
- c. Costs and litigation expenses
- d. Direction for penalty on BESCO for service deficiency
- e. Direction to comply with KESC communication norms

5. Evidence Checklist

- [] Copy of complaint dated 3 Mar 2026 (No. 456789)
- [] Acknowledgement/receipt from BESCO
- [] Photographs/recordings showing outage duration
- [] Work-from-home employment contract
- [] Salary/income statements for loss calculation
- [] Any SMS/email correspondence from BESCO
- [] Witness statements from neighbours (optional)

6. Forum

File before the District Consumer Disputes Redressal Commission, Bengaluru Urban, under CPA 2019 § 34 (pecuniary jurisdiction up to INR 1 crore).